

MUTUAL NON-DISCLOSURE AGREEMENT

This Non-Disclosure Agreement (this “**Agreement**”) is entered into on the 18th day of April 2026 (“**Effective Date**”) at Chennai,

Between

Maaya Analytics Private Limited, a company incorporated under the Laws of India (Company Number: **U62013TN2024PTC166469**, having its registered office at 26/5, Raja Nagar First Cross Street, Neelankarai, Chennai 600115 (hereinafter referred to as the “**Maaya Analytics**”, which expression shall, unless repugnant to the context or meaning thereof, be deemed to mean and include its affiliates, successors-in-interest and permitted assigns) of the **One Part**;

And

Shaumik Khanna (hereinafter referred to as “**Shaumik**”) which expression shall, unless repugnant to the context or meaning thereof, be deemed to mean and include their affiliates, successors in- title and permitted assigns) of the **Other Part**.

Maaya Analytics and Shaumik Khanna shall individually be known as “**Party**” or collectively known as “**Parties**.”

Each party to this Agreement is referred to as ‘the Recipient’ when it receives or uses the Confidential Information disclosed by the other party, and ‘the Disclosing Party’ means the Party furnishing Confidential Information.

1. Purpose

- 1.1. The Disclosing Party intends to engage the Receiving Party for availing of certain services, as the case may be (“**Purpose**”). In the course of discussions and negotiations regarding the Purpose, the Disclosing Party may disclose certain vital Confidential Information (*defined below*) about its business to the Receiving Party. For the protection of the Confidential Information, the Parties have decided to enter into this Agreement on the terms and conditions as mentioned hereinafter.

2. Confidential Information

- 2.1 For the purpose of this Agreement, “**Confidential Information**” shall mean any information relating to the Disclosing Party, its business, clients, customers and/ or business practices and shall include but not be limited to information of a commercial, technical, scientific, operational, administrative, financial, marketing, business, or intellectual property nature or otherwise, which is disclosed in any form (whether written, oral, or on magnetic or other media), relating to the Disclosing Party and any other information that is reasonably determined to be confidential or proprietary, whether or not clearly labelled or marked as confidential/proprietary, or all information concerning the Disclosing Party or provided by the Disclosing Party to the Receiving Party.
- 2.2 Confidential Information will not include information that:
 - (i) is presently known or hereafter becomes generally known or available to the public through no act or omission on the part of the Receiving Party.
 - (ii) was known by the Receiving Party prior to receiving such information from the Disclosing Party and without restriction as to use or disclosure.

- (iii) is rightfully acquired by the Receiving Party from a third party who has the right to disclose it and who provides it without restriction as to use or disclosure; or
 - (iv) is independently developed by the Receiving Party without access to any Confidential Information of the Disclosing Party.
- 2.3 The Receiving Party shall treat the existence of this Agreement, its contents, and its subject matter as Confidential Information and require the written approval of the Disclosing Party. Prior to any public acknowledgement of this Agreement, its contents, or its subject matter except as stated in Clause 2.2 above.
- 2.4 Each Party acknowledges and agrees that nothing in this Agreement will be construed as granting any rights to the other Party, by license or otherwise, in or to any Confidential Information of the Disclosing Party, or any patent, copyright or other intellectual property or proprietary rights of the Disclosing Party, save as expressly authorized by the Disclosing Party in writing or for the Business Purpose.

3. Confidentiality Obligations

- 3.1 The Receiving Party shall:
 - (a) use Confidential Information solely in connection with the Business Purpose and not use or exploit such Confidential Information, directly or indirectly, for their own benefit or for the benefit of any other person.
 - (b) not, directly, or indirectly, use, sell, rent, trade, or benefit from without the prior written consent of the Disclosing Party.
 - (c) not copy or reproduce the Confidential Information, except for such copies as which may be reasonably required for the accomplishment of the Business Purpose.
 - (d) not steal, hide, suppress, tamper with, misrepresent, incorrectly record, reverse engineer, decompile, or disassemble, abandon the custody of, or unauthorizedly copy the Confidential Information or any part thereof, and not and remove, overprint or deface any notice of confidentiality, copyright, trademark, logo, legend or other notices of ownership or confidentiality from any originals or copies of the Confidential Information.
 - (e) maintain confidentiality of the Confidential Information in accordance with applicable law, including applicable data protection law.
 - (f) treat such Confidential Information with the same degree of care and protection as it would treat its own confidential information and use the greatest degree of care to avoid unauthorized dissemination, access, disclosure, or publication of the Confidential Information; and
 - (g) not disclose to any other person (a) that discussions, investigations or negotiations are taking place concerning a possible transaction between the Parties, or (b) the terms, conditions, status or other facts regarding a possible transaction between the Parties, or (c) that the Receiving Party has received Confidential Information from the Disclosing Party. Provided that the Receiving Party may only advise such other party of the existence and terms of this Agreement and of the obligations of confidentiality herein
- 3.2 In the event that the Receiving Party is required by applicable law in any judicial or governmental proceeding to disclose any Confidential Information, the Receiving Party shall give the Disclosing Party prompt written notice of such request so that the Disclosing Party may seek a protective order or appropriate remedy. If, in the absence of a protective order, the Receiving Party determines, upon the written advice of its legal counsel, that it is legally required to disclose such Confidential Information, it may disclose such Confidential Information only to the extent compelled to do so, provided, however, that the Receiving Party gives the Disclosing Party written notice of the portion of Confidential Information to be disclosed as far in advance of the

disclosure as is practicable and uses its best efforts to ensure that the party to whom such Confidential Information is disclosed is advised of the confidential nature of such information and should be maintained as confidential.

- 3.3 The Receiving Party must immediately notify the Disclosing Party in writing of any suspected or actual unauthorized access, use, copying, or disclosure of any Confidential Information and immediately take all steps necessary to prevent or stop and comply with all reasonable directions of the Disclosing Party regarding the suspected or actual breach. The Receiving Party shall also provide such assistance as is reasonably requested by the Disclosing Party in relation to any proceedings that it may take as a result of such suspected or actual breach.
- 3.4 The Receiving Party may disclose the Confidential Information of the Disclosing Party to its partners/directors, legal and taxation advisors and employees who need to know such Confidential Information for the Business Purpose, provided that the Receiving Party shall ensure that each such partner/director, legal and taxation advisor and employee of the Receiving Party is bound by confidentiality obligations at least as strict as the terms of this Agreement, with respect to such Confidential Information.

4. Term and Termination

- 4.1 The term of this Agreement shall commence on the Effective Date and shall continue till such time it is terminated by either Party by providing 30 (thirty) days prior written notice to the other Party.
- 4.2 On termination or expiry of this Agreement, the Receiving Party shall promptly (a) return to the Disclosing Party its Confidential Information or (b) destroy such Confidential Information on receiving instructions from the Disclosing Party to do so and shall provide a certificate of destruction of the Confidential Information to the Disclosing Party. The foregoing destruction obligations shall entail the destruction of all tangible items and embodiments containing or consisting of the Disclosing Party's Confidential Information and all copies thereof (including electronic copies). Notwithstanding anything contained herein, the Receiving Party's confidentiality obligations under this Agreement shall survive for a period of three (Three) years from the date of expiration/ termination of this Agreement.

5. Indemnity and Liability

- 5.1 The Receiving Party agrees to indemnify the Disclosing Company, its affiliates, officers, employees, managers, directors and agents against any and all losses, damages, expenses, liabilities and costs of whatever nature (including legal fees and expenses) which it or they incur or suffer as a direct result of any breach of this Agreement by the Receiving Party, its affiliates, officers, employees, managers, directors or agents.
- 5.2 All Confidential Information is provided by the Disclosing Party on an "as is" basis. The Disclosing Party does not make any representations or warranties as to the accuracy or completeness of the Confidential Information, it being understood that the Disclosing Party shall not have any liability to the Receiving Party resulting from the use of the Confidential Information supplied by the Disclosing Party, except as may be expressly provided in a definitive agreement entered into between the Parties.

6. Relief and Damages:

Each Party acknowledges that unauthorized use or disclosure or threatened disclosure of the Disclosing Party's Confidential Information may cause the Disclosing Party to incur irreparable harm and significant damages, the degree of which may be difficult to ascertain. Accordingly, each Party agrees that the Disclosing Party will have the right to obtain immediate equitable relief to enjoin any unauthorized use or disclosure or threatened disclosure of its Confidential Information, in addition to any other rights and remedies that it may have at law or otherwise.

7. Miscellaneous

- 7.1 **No Obligation:** This Agreement is only for the purpose of protecting Confidential Information and shall not be construed as a teaming arrangement, joint venture, or other contractual arrangement or as an obligation to enter into any contract or other relationship. The Receiving Party understands and acknowledges that this Agreement does not obligate the Disclosing Party to enter into any further agreement. Unless and until a definitive agreement between the Parties or their affiliates with respect to the Business Purpose has been executed and delivered, neither Party shall be under any obligation (except to the extent of the confidentiality obligations set forth herein) to avail or supply any products or services or make any payments.
- 7.2 **Severability:** In case any one or more of the provisions contained in these terms and conditions shall for any reason be held to be invalid, illegal or unenforceable in any respect, such invalidity, illegality or unenforceability shall not affect any other provision of these terms and conditions, but these terms and conditions shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein and there shall be deemed substituted for such invalid, illegal or unenforceable provision such other provision as will most nearly accomplish the intent of the parties to the extent permitted by the applicable law.
- 7.3 **No Waiver:** No delay or failure in exercising any right, power or privilege hereunder shall be construed to be a waiver thereof, nor shall any single or partial exercise thereof preclude any other or further exercise thereof or the exercise of any other right, power or privilege hereunder, unless such waiver has been agreed in writing by the parties.
- 7.4 **Governing Law and Dispute Resolution:** This Agreement shall be governed by and construed in accordance with the laws of India and the courts at **Chennai** shall have exclusive jurisdiction over matters/ disputes in relation to this Agreement.
- 7.5 **Entire Agreement:** This Agreement is the complete and exclusive statement regarding the subject matter of this Agreement and supersedes all prior agreements, understandings, and communications, oral or written, between the parties regarding the subject matter of this Agreement. Neither Party may assign this Agreement, in whole or in part, without the other Party's prior written consent, and any attempted assignment without such consent shall be void.
- 7.6 **Modifications:** Any amendment to this Agreement shall be in writing and signed by the Parties.

IN WITNESS WHEREOF, the parties hereto have executed this Mutual Non-Disclosure Agreement by their duly authorized officers or representatives.

Maaya Analytics Private Limited:

Sudarsan Ranganathan
Sudarsan Ranganathan (Apr 20, 2026 10:33:47 GMT+5.5)

Signature:

Name: Sudarsan Ranganathan

Title: CEO

Date: 20/04/2026

Shaumik Khanna:

Shaumik Khanna
Shaumik Khanna (Apr 20, 2026 12:16:31 GMT+5.5)

Signature:

Name: Shaumik Khanna

Title:

Date: 20/04/2026